

Court No. - 39

Case :- WRIT - C No. - 25086 of 2020

Petitioner :- Ramchandra

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Harishchandra Dubey, Ram Mohan

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Naheed Ara Moonis, J.

Hon'ble Dinesh Pathak, J.

Heard the learned counsel for the petitioner, Sri Baleshwar Chaturvedi, learned counsel for the respondent nos. 2 and 3 and Sri B.P. Singh Kachhawah, learned Standing counsel on behalf of the respondent no.1.

The present writ petition has been filed with the following relief;

(i) issue a writ, order or direction in the nature of certiorari to quash the impugned R.C. dated 14.10.2019 issued by respondent no.3 (Annexure No.6 to this writ petition) with all its consequential effects.

(ii) issue a writ, order or direction in the nature of mandamus commanding the respondents to restrain the respondent concerned not to generate electricity bill of the petitioner's tube well before the electrification of the petitioner's tube well.

(iii) issue a writ, order or direction in the nature of mandamus commanding the respondents to allow the petitioner to deposit monthly bill generated after 17.12.2019 during the pendency of this writ petition and restrained to issue any notice or order against the petitioner for recovery of prior bill generated before 17.12.2019.

(iv) issue a writ, order or direction in the nature of mandamus restraining the respondents to disconnect the electricity connection of petitioner's tube well until the pendency of the writ petition.

(v) issue any suitable order or direction to which this Hon'ble court may deem fit and proper in the interest of justice.

(vi) award the costs of this writ petition in favour of petitioner."

At the very outset the learned counsel appearing on behalf of the power corporation submits that the petitioner has approached this court by filing a writ petition No. 42589 of 2019 challenging the recovery citation dated 14.10.2019. The writ petition was disposed of by the coordinate Bench directing the petitioner to move application under Clause 6.5 of the U.P. Electricity Supply Code, 2005

and the same was decided by the respondent no. 2 on 7.2.2020 by a detailed and reasoned order, which is annexed as Annexure 13 to the writ petition. He has further contended that if the petitioner has any grievance against the said order and disputing the amount of the recovery citation he has a remedy to approach the Electricity Consumer Grievance Forum under Clause 7.10 of U.P. Electricity Supply Code, 2005, which shall be considered expeditiously by the respondent no.2 in accordance with law. This fact has not been disputed by the learned counsel for the petitioner. However, it is submitted that an opportunity of hearing be afforded by the said Forum, to the petitioner while deciding his complaint.

In view of the availability of alternative remedy the writ petition is dismissed.

Order Date :- 13.1.2021
Shahnawaz